IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.301

C.A.(CAA)/27(AHM)2023

Order under Section 230-232

IN THE MATTER OF:

Ram-Krishna Holidays Pvt Ltd
Ram-Krishna Travels Pvt Ltd **.....Applicants**

Order delivered on: 25/10/2023

Coram:

Mr.Shammi Khan, Hon'ble Member(J)
Mr.Sameer Kakar, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of the order. The order is pronounced in the open court, vide separate sheet.

-Sd-
SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-
SHAMMI KHAN
MEMBER (JUDICIAL)

IN THE NATIONAL COMPANY LAW TRIBUNAL,
DIVISION BENCH - I, AHMEDABAD

C.A.(CAA)/27(AHM)2023

[Application under Sections 230-232 and read with other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016].

RAM-KRISHNA HOLIDAYS PRIVATE LIMITED
CIN NO: U55101GJ2008PTC054250
309, R K Plaza, Sainath Marg, Diwalipura,
Vadodara, Gujarat-390021

... Applicant / Transferor Company

And

RAM-KRISHNA TRAVELS PRIVATE LIMITED
CIN NO: U36941GJ1996PTC031407
209-210 & 309-310, R K Plaza, Sainath Marg,
Diwalipura, Vadodara, Gujarat-390021

... Applicant/ Transferee Company

Order Pronounced on 25.10.2023

CORAM:

SHAMMI KHAN, MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

Appearance:
For Applicant: Mr. Raimeen Maradiya, PCS

O R D E R

1. This is a Joint Company Application Viz., C.A.(CAA)/27(AHM)2023 filed by the Applicant Companies, namely **RAM-KRISHNA HOLIDAYS PRIVATE LIMITED** (for brevity "Transferor Company") and **RAM-KRISHNA TRAVELS PRIVATE LIMITED** (for brevity "Transferee Company") under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is also appended as ***"Annexure – R"*** to the C.A.(CAA)/27(AHM)2023.

2. The Applicant Companies in this Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS MEETING	**SECURED CREDITORS MEETING**	**UNSECURED CREDITORS MEETING**
TRANSFEROR	To Dispense	Nil	To Dispense with

COMPANY	with		
TRANSFEREE COMPANY	To Dispense with	To Dispense with	To Dispense with

3. From the certificate of incorporation filed, it is evident that the Transferor Company is a Private Limited Company incorporated under the provisions of Companies Act, 1956 on 19.06.2008 with the Registrar of Companies, Gujarat, under the name and style of "**RAM-KRISHNA HOLIDAYS PRIVATE LIMITED** ".

4. The authorized, issued subscribed and paid-up share capital of the Transferor Company as on 31.03.2022 is as under:

AUTHORIZED SHARE CAPITAL	**AMOUNT (IN RS.)**
10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	**AMOUNT (IN RS.)**
410,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**

5. From the certificate of incorporation filed, it is evident that the Transferee Company was incorporated as Private Limited Company under Companies Act, 1956 on 27.12.1996, with Registrar of Companies, Gujarat, under the name and style of "**RAM-KRISHNA TRAVELS PRIVATE LIMITED** ".

6. The authorized, issued subscribed and paid-up share capital of the Transferee Company as on 31.03.2022 is as under:

AUTHORIZED SHARE CAPITAL	**AMOUNT (IN RS.)**
20,00,000 Equity Shares of Rs.10/- each	2,00,00,000
Total	**2,00,00,000**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	**AMOUNT (IN RS.)**
16,56,000 Equity Shares of Rs. 10/-each	1,65,60,000
Total	**1,65,60,000**

7. Affidavit in support of the above application was sworn for and on behalf of the applicant Companies has been filed by Mr. Chirag Dineshchandra Zaveri in the capacity of whole time Director for the Transferor and Transferee Company along with the application and it

is also represented that the Registered office of the Transferor Company is situated at 309, R K Plaza, Sainath Marg, Diwalipura, Vadodara, Gujarat, India-390021 and the Registered office of the Transferee Company is situated at 209-210 & 309-310, R K Plaza, Sainath Marg, Diwalipura, Vadodara, Gujarat-390021 within the territorial jurisdiction of the Bench of this Tribunal and falling within the purview of Registrar of Companies Ahmedabad, Gujarat.

8. **RAM-KRISHNA HOLIDAYS PRIVATE LIMITED**

TRANSFEROR COMPANY

(i) There are **4 (Four)** Equity Shareholders and list of shareholders to this effect is placed at Page No. 199-201 of the application and consent by way of Affidavits given by all the equity shareholders is placed at Page Nos.187 to 198 and sought for dispensation with holding of meeting.

(ii) There are/is **Nil** Secured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 202-204 of the Application. Hence the necessity of convening, holding and conducting the meeting does not arise.

(iii) There are **2 (Two)** Unsecured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 215-217 of the Application and consent by way of Affidavits given by both the unsecured creditors is placed at Page No. 205 to 214 and sought for dispensation with holding of meeting.

9. **RAM-KRISHNA TRAVELS PRIVATE LIMITED**

TRANSFEREE COMPANY

(i) There are **2 (Two)** Equity Shareholders and list of shareholders to this effect is placed at Page No. 226 of the application and consent by way of Affidavits given by both the equity shareholders is placed at Page Nos. 218 to 223 and sought for dispensation with holding of meeting.

(ii) At the time of filing of the application there were **3 (Three)** Secured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 236-238. However, the dues of one of the Secured Creditor being HDFC bank have been satisfied, satisfaction letter for discharge of ROC charges dated 23.06.2023 issued by HDFC Bank is placed on record. The other 2 Secured Creditors who now constitute 100% of the total value of secured credit have already given their

consent by way of affidavit and the same is placed at Page No. 229 to 235 and therefore, sought for dispensation with holding of meeting.

(iii) There are **3 (Three)** Unsecured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 242-244 of the Application and consent by way of Affidavits given by two unsecured creditors, constituting 99.97%, is placed at Page No. 239 to 241 and sought for dispensation with holding of meeting.

10. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the applicant companies.

11. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2022 and Provisional/ Unaudited Financial Statements for the period ended on 30.09.2022.

12. The Board of Directors of the Applicant Companies vide meeting held on **06th February, 2023** had

unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the applicant companies.

13. The Appointed date as specified in the Scheme is **01.10.2022**.

14. The Statutory Auditors of the Transferor and Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.The said Certificates of the Statutory Auditors in this regard is placed at ***"Annexure S"*** of the Applicant Companies typed set of Documents filed along with the application.

15. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions: -

A. IN RELATION TO THE TRANSFEROR COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferor Company that there are **4** Equity shareholders in the Company whose consents by way of Affidavits have been obtained from all the equity shareholders and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

(ii) **With respect to Secured Creditors:**

Since it is represented by the Transferor Company that there are **NIL** Secured Creditor in the Company, hence the necessity of Convening, holding and conducting a meeting ***does not arise***.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Transferor Company that there are **2** unsecured creditors in the Company whose consents by way of Affidavits have been obtained from both the unsecured creditors and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

B. IN RELATION TO THE TRANSFEREE COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferee Company that there are **2 (Two)** Equity shareholders in the Company

whose consents by way of Affidavits have been obtained from all the equity shareholders and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

(ii) **With respect to Secured Creditors:**

Since it is represented by the Transferee Company that there were **3 (Three)** Secured Creditors one of whom has given No Due certificate and the other two who now constitute 100% of the total value of credit have given their consent by way of affidavit and the same are placed on record the necessity of convening, holding and conducting the meeting is ***dispensed with***.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Transferee Company that there are **3 (Three)** Unsecured Creditors in the Company out of which two unsecured creditors, constituting 99.97%, have given their consent by way of Affidavit and the same are placed on record the necessity of convening, holding and conducting the meeting is ***dispensed with***

(iv) In compliance of subsection (5) of Section 230 and Rule 8 of the Companies (CAA) Rules, 2016, the Applicant Companies shall send a notice in Form No. CAA.3 along with copy of the Scheme : to (i) the Central Government through the Regional Director, North

Western Region; (ii) the Registrar of Companies, Gujarat; (iii) the Income Tax Authority concerned and (iv) the Official Liquidator (for Transferor Company) and to such other sectoral regulatory authorities who may govern the working of the Applicant Companies, stating that the representations, if any, to be made by them shall be made within a period of 30 days from the date of receipt of such notice, failing which it shall be presumed that they have no objection to make on the Scheme. The said notices shall be sent forthwith by email or by registered post or by speed post or by courier or by hand delivery at the office of the authority as required by sub-rule (2) of Rule 8 of the Companies (CAA) Rules, 2016. The aforesaid authorities, who desire to make any representation under sub-section (5) of Section 230 of the Act, shall send the same to this Tribunal with a copy of the same to be supplied to the Applicant Companies.

16. This Company Application, i.e. **C.A. (CAA)/27(AHM)2023** is **allowed** and disposed of accordingly, in terms of the above directions.

-Sd-
SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-
SHAMMI KHAN
MEMBER (JUDICIAL)